

ORIGINAL

(S E R V E D)
(November 14, 2002)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

November 14, 2002

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**MOTION OF APL FOR LIMITED FLEXIBILITY
IN APPLYING PAGE LIMITS GRANTED**

Respondent American President Lines, Ltd. ("APL") filed on November 8, 2002, a motion to allow the parties limited flexibility in applying the page limitations applicable to opening and reply briefs, which are due on November 19 and December 20, respectively.

APL notes that under the rules, 46 C.F.R. § 502.221(f), each brief is subject to a limitation of 80 pages. APL believes that it will facilitate orderly and useful briefing if a party's opening brief is permitted to be somewhat longer than 80 pages, subject to the condition that the page limit for the

party's reply brief is correspondingly reduced on a page-for-page basis, thereby retaining the overall limit of 160 pages. APL contends that this is warranted because the opening brief must include not only legal argument, but also discussion of the evidentiary record and proposed findings of fact. APL thus requests that the parties be given flexibility to allocate to the opening brief up to half of the 80 pages permitted for the reply brief, subject to the above-mentioned condition. (For example, if the party's opening brief is 110 pages, its reply brief could be no longer than 50 pages.) APL states that this cannot prejudice other parties, because they will have an opportunity to reply to any material included in the opening brief. APL adds that this motion is filed (on November 8, 2002) well within the time specified by Rule 221(f) (5 days) for motions to modify page limits.

APL states that it is authorized to represent that respondent Sea-Land Service, Inc. ("Sea-Land") supports this motion, and that counsel for complainants earlier advised that complainants did not agree with such a proposal, but that APL has not been able to communicate with GovGuam's counsel about the specifics of the motion. GovGuam since has stated, on November 13, 2002, that it "is not in favor of flexible applications of page limits but does not have a position regarding APL's request for such."

Discussion and Conclusions

APL's motion pertains to Rule 221(f) which provides in full as follows:

(f) All briefs filed pursuant to this section shall ordinarily be limited to eighty (80) pages in length, exclusive of pages containing the table of contents, table of authorities and certificate of service, unless the presiding officer allows the parties to exceed this limit for good cause shown and upon application filed not later than five (5) days before the time fixed for filing of such a brief or reply. [Rule 221]

[49 FR 44369, Nov. 6, 1984, as amended at 61 FR 51233, Oct. 1, 1996; 64 FR 7810, Feb. 17, 1999]

In *Rose Int'l, Inc. v. Overseas Moving Network Int'l Ltd.*, 29 S.R.R. 1128 (1999), complainant requested an additional 100 pages to the 50-page limit for exceptions set forth in Rule 227(e). In the order granting complainant a 25 instead of a 100 additional page limit for its exceptions, the Commission explained in words applicable here, too, as to the request for limited flexibility in applying page limits in briefs and reply briefs:

Rule 227(e) provides that all exceptions shall be limited to 50 pages, "unless the Commission allows the parties to exceed this limit for good cause shown." 46 CFR §502.227. This rule took effect on May 1, 1999. Previously there had been no page limit on briefs filed with the Commission. However, the 50-page limit was promulgated as a means of improving the efficiency of the Commission's adjudicative process by encouraging parties filing exceptions to construct focused briefs. The exception to the page limit, requiring a showing of good cause, was intended to provide for those extraordinary cases in which a 50-page brief would be insufficient to address the relevant issues. Black's Law Dictionary explains "good cause" as "[s]ubstantial reason, one that affords a legal excuse." Black's Law Dictionary, 623 (5th ed. 1979).

Id. at 1129.

The same "good cause" test under Rule 227(e) as to exceptions has relevance to the "good cause" test under Rule 221(f) as to briefs and reply briefs. As APL, joined in by Sea-Land, contends, permitting the opening brief to exceed the 80-page cap "will facilitate orderly and useful briefing" because "the opening brief must include not only legal argument, but also discussion of the evidentiary record and proposed findings of fact."

In *Rose, supra*, the Commission explained that "the 50-page limit was promulgated as a means of improving the efficiency of the Commission's adjudicative process by encouraging parties

filing exceptions to construct focused briefs.” *Id.* at 1129. If adjusting the page limits for opening and reply briefs as sought results in more “focused briefs” and reply briefs, then the parties would help meet the goal of the Commission to improve the adjudicative process. Likewise, the quality of the Initial Decision will be enhanced by the quality of the briefs and reply briefs. And it must be emphasized that the request is not to exceed the 160-page ceiling here, but rather to reallocate the maximum pages in the opening and reply briefs. Grant of this request should result in improved opening and reply briefs for all the parties in this proceeding, and in the circumstances, good cause has been established and the motion will be granted.

IT IS ORDERED:

The motion of American President lines, Ltd., joined in by Sea-Land Service, Inc., is granted and the parties’ initial briefs due November 19, 2002, may exceed 80 pages in length, exclusive of pages containing the table of authorities and certificate of service, subject to the condition that the page limit for the reply briefs due December 20, 2002, is correspondingly reduced on a page-for-page basis, thereby retaining the overall limit of 160 pages specified in 46 C.F.R. § 502.221(f).



Frederick M. Dolan, Jr.
Administrative Law Judge